

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 2, 2026
8:30 a.m./1:30 p.m.

12. JENNIFER DAIGNAULT-KREBS V. TODD KREBS

25FL0807

Petitioner filed a motion for joinder on May 12, 2026. A Summons was issued the same day. Proof of Service shows Respondent was personally served on May 18, 2026.

Respondent filed a Responsive Declaration and Memorandum of Points and Authorities on June 18, 2026. Both were served the same day.

In determining the joinder request, “[t]he court may order that a person be joined as a party to the proceeding if the court finds that it would be appropriate to determine the particular issue in the proceeding and that the person to be joined as a party is either indispensable for the court to make an order about that issue or is necessary to the enforcement of any judgment rendered on that issue.” Cal. Rule Ct. 5.24(e)(2). Importantly, joinder of a third-party owner is permissive, not mandatory, for purposes of adjudicating the spouses’ rights amongst themselves. See *Long v. Long*, 88 Cal. App. 2d 544 (1948).

Petitioner relies on the doctrine of a constructive trust which is created where one party pays the purchase price for property, but title is taken in another’s name. However, she does not provide any documentation that the parties paid the purchase price, including the down payment, or taking out the mortgage in their names. Respondent opposes the joinder asserting that the third party is not indispensable to the court nor is it necessary to the enforcement of the judgment.

The court has read and considered the filings as outlined above. The court denies the request for joinder, as the party sought to be joined is not indispensable and is not necessary to enforce the judgment. Petitioner has appropriate remedies available through the civil court.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #12: THE COURT DENIES THE REQUEST FOR JOINDER, AS THE PARTY SOUGHT TO BE JOINED IS NOT INDISPENSABLE AND IS NOT NECESSARY TO ENFORCE THE JUDGMENT. PETITIONER HAS APPROPRIATE REMEDIES AVAILABLE THROUGH THE CIVIL COURT. ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS

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EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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13. AMY LYNN MONCADA V. BRANDON MONCADA

PFL20170685

Petitioner filed an Order to Show Cause and Affidavit for Contempt on May 13, 2026, asserting one count of contempt. Respondent was personally served on May 30, 2026.

Parties are ordered to appear for the hearing.

TENTATIVE RULING #13: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.